

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- x
MICHELLE KULIKOV,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER ALAN LEE, Tax No.
961881, and POLICE OFFICERS JOHN and JANE DOES
#1-5,

Defendants.

Index No.:

Date Purchased:

Plaintiff designates Kings
County as the place of trialBasis of the venue is the Locus
of Occurrence

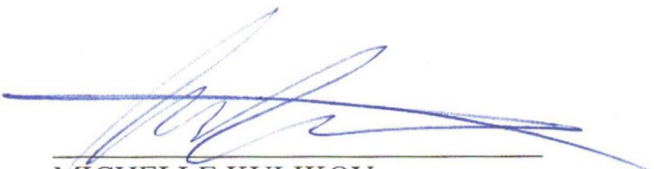
SUMMONS

Plaintiff resides at
445 Neptune Avenue, Apt 16G
Brooklyn, NY 11224

----- x County of Kings

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff herein within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
October 9, 2019
MICHELLE KULIKOV

Plaintiff

445 Neptune Avenue, Apt 16G
Brooklyn, New York 11224
(347) 387-0057**TO: THE CITY OF NEW YORK**
100 Church Street
New York, New York 10007**POLICE OFFICER ALAN LEE – Tax No. 961881**
c/o New York City Police Department – 60th Precinct
2951 West 8th Street
Brooklyn, New York 11224

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
MICHELLE KULIKOV,

Plaintiff,

COMPLAINT

-against-

Index No.:

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER ALAN LEE, Tax No.
961881, and POLICE OFFICERS JOHN and JANE DOES
#1-5,Defendants.
----- X

Plaintiff, MICHELLE KULIKOV, complaining of the defendants herein, upon information and belief, alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF MICHELLE KULIKOV

1. That at all times hereinafter mentioned, plaintiff, MICHELLE KULIKOV, was and still is a resident of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on October 11, 2018, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof,

and that thereafter the CITY OF NEW YORK, refused or neglected for more than thirty (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on October 4, 2019, pursuant to the General Municipal Law, a Statutory 50-H hearing of plaintiff was held.

6. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER ALAN LEE, Tax No. 961881 and POLICE OFFICERS JOHN and JANE DOES #1-5, as agents, servants and/or employees.

7. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, MICHELLE KULIKOV, was lawfully present at or about the premises known as 1311 Brightwater Avenue, Apt. 3M, County of Kings, City and State of New York.

8. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the plaintiff, MICHELLE KULIKOV, was falsely arrested by defendants, POLICE OFFICER ALAN LEE, Tax No. 961881 and POLICE OFFICERS JOHN and JANE DOES #1-5, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid premises.

9. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the aforementioned false arrest was performed knowingly, intentionally and willfully.

10. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER ALAN LEE, Tax No. 961881 and POLICE OFFICERS JOHN and JANE DOES #1-5, who falsely arrested the plaintiff, MICHELLE KULIKOV, were acting within the scope of their employment with the defendants, THE CITY

OF NEW YORK.

11. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

12. That as a result of the aforesaid false arrest and confinement, plaintiff, MICHELLE KULIKOV, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

13. By the reason of the foregoing, the plaintiff, MICHELLE KULIKOV, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF MICHELLE KULIKOV

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER ALAN LEE, Tax No. 961881 and POLICE OFFICERS JOHN and JANE DOES #1-5, who violated the civil rights of the plaintiff, MICHELLE KULIKOV.

16. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER ALAN LEE, Tax No. 961881 and POLICE OFFICERS JOHN and JANE DOES #1-5, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, MICHELLE KULIKOV, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION FOR
FALSE IMPRISONMENT ON BEHALF OF MICHELLE KULIKOV

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. That on July 14, 2018, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER ALAN LEE, Tax No. 961881 and POLICE OFFICERS JOHN and JANE DOES #1-5, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

20. That the defendants, POLICE OFFICER ALAN LEE, Tax No. 961881 and POLICE OFFICERS JOHN and JANE DOES #1-5, while acting within the scope of their employment, intentionally confined the plaintiff against her will and said confinement was not privileged.

21. By the reason of the foregoing, the plaintiff, MICHELLE KULIKOV, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS
ON BEHALF OF MICHELLE KULIKOV

22. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "21" inclusive with the same force and effect as if more fully set forth at length herein.

23. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER ALAN LEE, Tax No. 961881 and POLICE OFFICERS JOHN and JANE

DOES #1-5, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

24. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, MICHELLE KULIKOV.

25. That as a result of said intentional and negligent acts, the plaintiff, MICHELLE KULIKOV, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of her person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

26. By the reason of the foregoing, the plaintiff, MICHELLE KULIKOV, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION FOR
CIVIL RIGHTS VIOLATION ON BEHALF OF MICHELLE KULIKOV

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER ALAN LEE, Tax No. 961881 and POLICE OFFICERS JOHN and JANE DOES #1-5, were acting under the color of law and within the scope of their authority, falsely arrested and falsely imprisoned the plaintiff, MICHELLE KULIKOV, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

29. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER ALAN LEE, Tax No. 961881 and POLICE OFFICERS JOHN and JANE DOES #1-5, acting under color of law and within the scope of their authority, deprived the plaintiff, MICHELLE KULIKOV, of liberty without due process and without reasonable cause in

violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

30. The defendants had deprived the plaintiff by their actions of her civil rights as guaranteed by statute.

31. That the false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

32. That the deprivation by the defendants of plaintiff's civil rights was a result of the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER ALAN LEE, Tax No. 961881 and POLICE OFFICERS JOHN and JANE DOES #1-5, acting under color of law and within their authority as law enforcement officers within the employ of the defendant, THE CITY OF NEW YORK.

33. That the defendants' actions were not privileged or immune.

34. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER ALAN LEE, Tax No. 961881 and POLICE OFFICERS JOHN and JANE DOES #1-5, were not acting with immunity when they deprived plaintiff of her civil rights.

35. By the reason of the foregoing, the plaintiff, MICHELLE KULIKOV, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, MICHELLE KULIKOV, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, MICHELLE KULIKOV, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, MICHELLE KULIKOV, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, MICHELLE KULIKOV, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, MICHELLE KULIKOV, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; together with the costs and disbursements of this action.

Dated: Brooklyn, New York
October 9, 2019

Yours, etc.



MICHELLE KULIKOV
Plaintiff
445 Neptune Avenue, Apt 16G
Brooklyn, New York 11224
(347) 387-0057

VERIFICATION

STATE OF NEW YORK)

) ss.:

COUNTY OF KINGS)

MICHELLE KULIKOV, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing **COMPLAINT** and know the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


MICHELLE KULIKOVSworn to before me this 9th

day of October 2019


NOTARY PUBLIC

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

MICHELLE KULIKOV,

Plaintiff,

– against –

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER ALAN LEE, Tax No. 961881, and POLICE OFFICERS JOHN and JANE
DOES #1-5,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

MICHELLE KULIKOV
445 Neptune Avenue Apt 16G
Brooklyn, New York 11224
(347) 387-0057
